Fiscal Impact Statement

Legislative Council Staff

Nonpartisan Services for Colorado's Legislature

AMENDMENT 81: LAW ENFORCEMENT COMMUNICATION WITH FEDERAL IMMIGRATION AUTHORITIES

Analyst: Brendan Fung, brendan.fung@coleg.gov, 303-866-4781

Date: September 10, 2026

Summary Information

Overview. The measure amends the state constitution to require law enforcement officers to notify federal agencies when undocumented immigrants or persons with indeterminate immigration status are charged with a crime of violence or have been convicted of a prior felony.

Types of impacts. The measure is projected to affect the following areas:

- State Expenditures
- Local Government
- Statutory Public Entity

Disclaimer. This fiscal impact statement has been prepared for a statewide ballot measure appearing at the 2026 statewide election. Any appropriations required to implement this measure will be addressed through the annual or supplemental budget process if this measure is approved by voters. For more information about this measure, please see the ballot information booklet.

Table 1
State Fiscal Impacts

Type of Impact	Current Year FY 2026-27	Budget Year FY 2027-28
State Revenue	$0	$0
State Expenditures	$60,000	$0
Transferred Funds	$0	$0
Change in TABOR Refunds	$0	$0
Change in State FTE	0.0 FTE	0.0 FTE

Amendment 81

Summary of Measure

This measure amends the state constitution to require certified peace officers employed by a law enforcement agency, correctional officers, and district attorney personnel to notify the federal Department of Homeland Security within 72 hours of charging someone with a crime if the charge is a crime of violence or if the individual has a prior felony conviction. The notification requirement applies if the charged individual is not lawfully present in the U.S., or if their lawful status cannot be determined.

State Expenditures

In FY 2026-27, expenditures in the Department of Revenue are estimated to increase by $50,000 to access federal databases and make programming changes to integrate data and processes. Similarly, expenditures will also increase in the Department of Natural Resources by about $10,000 to make computer system updates. The measure does not specify a funding source to pay for these costs and it is assumed that they will be paid from the General Fund.

Workload may also increase in these departments, as well as the departments of Higher Education, Human Services, Judicial, Law, and Public Safety, to the extent they are required to determine a charged individual's immigration status and communicate with the federal government on affected cases; however, this work will be primarily conducted by local governments

Local Government and Statutory Public Entity Impacts

Local law enforcement agencies, including police, district attorney offices, and Regional Transportation District officers, will have increased workload and expenditures. As with the state, the added workload involves determining a charged individual's immigration status and communicating with the federal government on affected cases. Because this determination happens after charges are filed, most of the workload will fall on district attorney offices. The amount of work will vary by jurisdiction depending on how many individuals are charged there. Expenditures, if incurred, will be on systems updates.

Technical Note

The measure requires law enforcement officers to notify federal agencies after charging certain undocumented individuals with a crime. However, law enforcement officers only arrest suspected offenders, who are then charged by prosecuting attorneys. The fiscal note assumes that it will be primarily district attorneys notifying federal agencies after an individual is charged with a crime.

Amendment 81

Effective Date

If approved by voters at the 2026 general election, this measure takes effect upon proclamation of the Governor, no later than 30 days after the official canvass of the vote is completed.

State and Local Government Contacts

Corrections
Counties
District Attorneys
Higher Education
Human Services
Judicial
Law
Municipalities
Natural Resources
Police Chiefs
Public Safety
Regional Transportation District
Revenue
Sheriffs